

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

A shop near my home has CCTV footage showing a person stealing my motorcycle. The shopkeeper copied the relevant video from the CCTV system onto a pen drive and gave it to me. The accused now claims that the video could have been edited or modified after it was copied. What legal provisions apply to proving and admitting this footage as electronic evidence?

Job Id. : qwen3-30b/Scenario 8/Information Technology (IT) Act, 2000

Prepared by : NyaySahayak

Date : 29 August 2026

NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 79A

— Central Government to notify Examiner of Electronic Evidence

Potentially relevant if expert examination of the CCTV file's authenticity/integrity is needed.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 79A** is an expert-evidence support provision; admissibility/proof itself is governed by the BSA.

✓ STRENGTHS & RIGHTS

- 1** The accused specifically alleges editing/modification, which can make forensic examination useful.

✗ RISKS & OBLIGATIONS

- 1** Intermediary safe-harbour rules are not relevant merely because footage is digital; admissibility is governed by the BSA.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Preserve the original CCTV system/source as well as the pen-drive copy.

TERMS, CONDITIONS & DISCLAIMER

Please read carefully before acting on any information in this report

1. Nature of Report

This report has been generated by an AI-powered legal information tool (NyaySahayak). It is intended solely for general educational and informational purposes and does not constitute legal advice, legal opinion, or a substitute for consultation with a qualified and licensed legal professional.

2. No Attorney-Client Relationship

Access to or use of this report does not create an attorney-client relationship between the user and NyaySahayak or any of its affiliates, partners, or associated legal professionals. The information presented herein should not be relied upon as legal advice for any specific matter.

3. Accuracy & Completeness

While every effort has been made to ensure that the information in this report is accurate and up-to-date as of the date of generation, the law is subject to change. NyaySahayak makes no representation or warranty, express or implied, regarding the accuracy, completeness, reliability, or suitability of the information contained herein.

4. Limitation of Liability

To the maximum extent permitted by applicable law, NyaySahayak and its directors, employees, agents, and licensors shall not be liable for any direct, indirect, incidental, special, consequential, or punitive damages arising out of or in connection with the use of this report or reliance on any information contained herein.

5. Jurisdiction

This report has been prepared with reference to Indian law, including the Digital Personal Data Protection Act, 2023, and related statutes. Laws and their interpretations vary across jurisdictions. Users outside India should seek local legal advice.

6. Confidentiality

This report is prepared for the named recipient only. Unauthorised disclosure, copying, distribution, or use of this document or the information it contains is strictly prohibited.

7. Verification Obligation

The user is strongly advised to independently verify all information contained in this report with a qualified lawyer before taking any legal action or making any legal decision.

IMPORTANT DISCLAIMER: THIS DOCUMENT IS AI-GENERATED AND IS PROVIDED FOR EDUCATIONAL AND INFORMATIONAL PURPOSES ONLY. IT DOES NOT CONSTITUTE LEGAL ADVICE. ALWAYS CONSULT A QUALIFIED LAWYER FOR ADVICE SPECIFIC TO YOUR SITUATION. NYAYSAHAYAK ACCEPTS NO LIABILITY FOR ANY ACTIONS TAKEN IN RELIANCE ON THIS REPORT.